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11 SUPERIOR COURT OF THE STATE OF CALIFORNIA
12 COUNTY OF LOS ANGELES
13

14 THE PEOPLE OF THE STATE OF
15 CALIFORNIA,

16 Plaintiff,

17 v.

18 JAM CITY, INC.,
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20 Defendant.
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FILING WINDOW

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Superior Court of California
County of Los Angeles

NOV 21 2025

David W. Slayton, Executive Officer/Clerk of Court

By: S. Temblador, Deputy

CASE NO.: 25STCV34029

~~[PROPOSED]~~ FINAL JUDGMENT AND
PERMANENT INJUNCTION

11/21/2025

1 Plaintiff, the People of the State of California ("the People"), appearing through its
2 attorneys, Rob Bonta, Attorney General of the State of California, by Deputy Attorneys General
3 Maneesh Sharma and Amos E. Hartston and Supervising Deputy Attorney General Stacey D.
4 Schesser, and Defendant Jam City, Inc. ("DEFENDANT"), represented by their attorneys, Daniel
5 M. Goldberg and Caren Decter of Frankfurt Kurnit Klein & Selz PC, having stipulated to the
6 entry of this Final Judgment and Permanent Injunction ("JUDGMENT") by the Court without the
7 taking of proof and without trial or adjudication of any fact or law, without this JUDGMENT
8 constituting evidence of or an admission by DEFENDANT regarding any issue of law or fact
9 alleged in the Complaint on file, and without DEFENDANT admitting any liability, and with all
10 parties having waived their right to appeal, and the Court having considered the matter and good
11 cause appearing:

12 IT IS HEREBY ORDERED, ADJUDGED, AND DECREED THAT:

13 **I. PARTIES AND JURISDICTION**

14 1. This Court has jurisdiction over the allegations and subject matter of the People's
15 Complaint filed in this action, and the parties to this action; venue is proper in this County; and
16 this Court has jurisdiction to enter this JUDGMENT. This JUDGMENT is entered pursuant to the
17 California Consumer Privacy Act of 2018, Civil Code section 1798.100 *et seq.*, as amended
18 ("CCPA"), and the Unfair Competition Law, Business and Professions Code section 17200 *et*
19 *seq.* ("UCL").

20 **II. DEFINITIONS**

21 The following terms in this JUDGMENT shall have these meanings:

22 2. CHILD-VERSION means a version of a mobile application configured not to
23 SELL or SHARE CONSUMER PERSONAL INFORMATION, including, without limitation, in
24 connection with cross-context behavioral advertising based on or inferred from PERSONAL
25 INFORMATION COLLECTED through the mobile application.

26 3. CLEAR AND CONSPICUOUS means that a required disclosure is easily
27 noticeable and easily understandable by ordinary CONSUMERS.

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1 4. COLLECTS or COLLECTION has the same meaning as provided in Civil Code
2 section 1798.140, subdivision (f).

3 5. CONSUMER means a natural person who is a California resident.

4 6. DEFENDANT mean Jam City, Inc., a Delaware corporation headquartered in
5 Culver City, California, and its successors and assigns.

6 7. EFFECTIVE DATE means the date that DEFENDANT is served with notice that
7 this JUDGMENT has been entered.

8 8. NOTICE OF RIGHT TO OPT-OUT OF SALE/SHARING has the same meaning
9 as provided in California Code of Regulations, title 11, section 7001, subdivision (s), and
10 California Code of Regulations, title 11, section 7013.

11 9. OPT-OUT LINK means the Do Not Sell or Share My Personal Information link
12 provided in Civil Code section 1798.135, subdivision (a), or the Alternative Opt-Out Link
13 provided in California Code of Regulations, title 11, sections 7001, subdivision (b) and 7015, and
14 in the case of mobile or connected device applications shall mean any setting or menu option that
15 leads the CONSUMER to a page, setting, or control that enables the CONSUMER to opt-out of
16 the SALE AND SHARING of the CONSUMER'S PERSONAL INFORMATION.

17 10. PERSONAL INFORMATION means information that identifies, relates to,
18 describes, is reasonably capable of being associated with, or could reasonably be linked, directly
19 or indirectly, with a particular CONSUMER or household. PERSONAL INFORMATION
20 includes the items listed in the definition of "personal information" found in Civil Code section
21 1798.140, subdivision (v), which includes, without limitation, "unique identifier" or "unique
22 personal identifier" as set forth in Civil Code section 1798.140, subdivision (aj).

23 11. PRIVACY POLICY has the same meaning as provided in California Code of
24 Regulations, title 11, section 7001, subdivision (w), and California Code of Regulations, title 11,
25 section 7011.

26 12. SALE, SELL, OR SELLING has the same meaning as provided in Civil Code
27 section 1798.140, subdivision (ad).

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1 13. SHARE or SHARING has the same meaning as provided in Civil Code section
2 1798.140, subdivision (ah).

3 **III. INJUNCTIVE PROVISIONS**

4 14. Nothing in this JUDGMENT alters the requirements of state or federal law to the
5 extent they offer greater protection to CONSUMERS.

6 15. The injunctive provisions of this JUDGMENT, entered pursuant to Business and
7 Professions Code section 17203 and Civil Code section 1798.199.90, shall apply to: (a)
8 DEFENDANT; (b) its directors, officers, and employees; (c) its subsidiaries; (d) its agents and
9 independent contractors; and (e) its successors and the assigns of all or substantially all of the
10 assets of its business.

11 **COMPLIANCE WITH THE CALIFORNIA CONSUMER PRIVACY ACT (CCPA)**

12 **CONSUMERS' RIGHT TO OPT OUT OF SALE OR SHARING**
13 **OF PERSONAL INFORMATION**

14 16. DEFENDANT shall comply with the following provisions of the CCPA and its
15 implementing regulations related to required notices and CONSUMERS' right to opt-out of the
16 SELLING or SHARING of their PERSONAL INFORMATION: Civil Code sections 1798.100,
17 1798.120, 1798.130, subdivisions (a)(5) and (a)(6), and 1798.135; California Code of
18 Regulations, title 11, sections 7003, 7004, 7010, 7011, 7012, 7013, 7015, 7025, 7026, and 7060,
19 subdivision (b), including as they may be amended or modified.

20 17. To the extent DEFENDANT SELLS OR SHARES CONSUMER PERSONAL
21 INFORMATION, DEFENDANT shall implement a consumer-friendly, easy to execute opt-out
22 process that allows CONSUMERS to opt-out of DEFENDANT'S SALE or SHARING of
23 CONSUMERS' PERSONAL INFORMATION with minimal steps.

24 a. DEFENDANT shall provide a CLEAR AND CONSPICUOUS OPT-OUT
25 LINK within its website(s) that shall either immediately effectuate the CONSUMER'S choice to
26 opt-out of SALE and SHARING, or in the alternative, direct the CONSUMER to the NOTICE
27 OF RIGHT TO OPT-OUT OF SALE/SHARING consistent with applicable obligations under the
28 CCPA.

1 b. DEFENDANT shall provide a CLEAR AND CONSPICUOUS OPT-OUT
2 LINK within its mobile applications that shall either immediately effectuate the CONSUMER'S
3 choice to opt-out of SALE and SHARING, or in the alternative, direct the CONSUMER to the
4 NOTICE OF RIGHT TO OPT-OUT OF SALE/SHARING consistent with applicable obligations
5 under the CCPA. DEFENDANT shall provide the NOTICE OF RIGHT TO OPT-OUT OF
6 SALE/SHARING within each application DEFENDANT make available to CONSUMERS. If
7 the mobile application OPT-OUT LINK does not immediately effectuate the CONSUMER'S
8 choice to opt-out, the mobile application's NOTICE OF RIGHT TO OPT-OUT OF
9 SALE/SHARING shall include an easy-to-use opt-out method, such as a simple toggle or check
10 box.

11 c. Where a CONSUMER opt-outs through a mobile application,
12 DEFENDANT shall effectuate the CONSUMER'S opt-out choice across all of DEFENDANT'S
13 mobile applications for any PERSONAL INFORMATION DEFENDANT associates with the
14 CONSUMER.

15 d. DEFENDANT'S NOTICE OF RIGHT TO OPT-OUT OF
16 SALE/SHARING shall request the minimal amount of PERSONAL INFORMATION necessary
17 to effectuate the CONSUMER'S opt-out choice. The NOTICE OF RIGHT TO OPT-OUT OF
18 SALE/SHARING shall be formatted and designed to fit and scale to the website or application
19 where it is provided, without unnecessarily burdening a CONSUMER'S ability to opt-out.

20 18. DEFENDANT shall provide a means by which the CONSUMER can confirm that
21 their request to opt-out of SALE/SHARING has been processed by DEFENDANT, for example
22 by displaying on its website "Opt-Out Request Honored" and through a toggle or radio button that
23 the CONSUMER has opted out of the SALE/SHARING of their PERSONAL INFORMATION,
24 including within each application DEFENDANT makes available to CONSUMERS.

25 19. If DEFENDANT makes available to CONSUMERS mechanisms on its websites
26 or mobile applications that offer CONSUMERS choices related to the COLLECTION of
27 PERSONAL INFORMATION, other than the CCPA required opt-out process, such as a cookie
28 preference manager, DEFENDANT shall avoid language or design likely to confuse a reasonable

1 CONSUMER into believing that the other choice(s) (i) constitute a CCPA compliant opt-out
2 method, or (ii) must also be selected to opt-out of SELLING or SHARING. DEFENDANT shall
3 not implement such other choice(s) in a manner likely to subvert or impair CONSUMER
4 decision-making or choice related to opting out of the SELLING or SHARING of their
5 PERSONAL INFORMATION. For the avoidance of doubt, nothing in this Paragraph prevents
6 DEFENDANT from using the same mechanism to effectuate the CCPA required opt-out and
7 other choices related to the COLLECTION of PERSONAL INFORMATION, provided such
8 mechanism is presented in a clear and non-confusing manner consistent with the CCPA.

9 **SPECIAL RULES REGARDING CONSUMERS UNDER 16 YEARS OF AGE**

10 20. DEFENDANT shall comply with the following provisions of the CCPA and its
11 implementing regulations related to special rules regarding CONSUMERS under 16 years of age:
12 Civil Code, § 1798.120, subdivision (c); California Code of Regulations, title 11, sections 7070-
13 7072, including as they may be amended or modified.

14 21. WHERE DEFENDANT implements an age-screening mechanism within its
15 mobile applications, DEFENDANT shall comply with the following:

16 a. DEFENDANT shall design the age-screening mechanism in a neutral
17 manner that (1) does not default to age of 16 or above, and (2) does not suggest that certain
18 features will not be available for CONSUMERS who identify as younger than 16 years of age.
19 DEFENDANT shall not COLLECT PERSONAL INFORMATION from CONSUMERS prior to
20 COLLECTING age information through the age-screen, except as permitted by law.

21 b. For CONSUMERS who submit an age of less than 13 years through the
22 age-screen, DEFENDANT shall direct the CONSUMER to a CHILD-VERSION of the
23 application.

24 c. For CONSUMERS who submit an age of at least 13 years and less than 16
25 years through the age screen, DEFENDANT shall direct the CONSUMER to a CHILD-
26 VERSION of the application or alternatively, obtain the CONSUMER'S affirmative authorization
27 to SELL or SHARE the CONSUMER'S PERSONAL INFORMATION before directing them to
28 a non-CHILD-VERSION of the application.

1 22. DEFENDANT shall direct all third-parties to whom DEFENDANT SOLD or
2 SHARED the PERSONAL INFORMATION COLLECTED from CONSUMERS who submitted
3 an age of less than 16 years in any DEFENDANT mobile application to delete such
4 CONSUMERS' PERSONAL INFORMATION collected prior to October 1, 2024.

5 **COMPLIANCE PROGRAM**

6 23. Within 180 days of the EFFECTIVE DATE, and for a period of three years
7 thereafter, DEFENDANT shall implement and maintain a program to assess and monitor whether
8 it is effectively providing methods of opting out of SELLING AND SHARING that are
9 consumer-friendly, easy to execute, require minimum steps, and which, as appropriate, implement
10 a CONSUMER'S opt-out request as described in Paragraphs 16-19 of this JUDGMENT, and that
11 DEFENDANT is providing disclosures and notices that comply with this JUDGMENT. For three
12 years from the EFFECTIVE DATE, DEFENDANT shall document and share the results of this
13 review with the People in an annual report.

14 24. Within 180 days of the EFFECTIVE DATE, and for a period of three years
15 thereafter, DEFENDANT shall implement and maintain a program to assess and monitor whether
16 it is making reasonable efforts to comply with Paragraphs 20-22 of this JUDGMENT relating to
17 special rules regarding CONSUMERS under 16 years of age. For three years from the
18 EFFECTIVE DATE, DEFENDANT shall document and share the results of this review with the
19 People in an annual report.

20 25. All reports, reviews, and sharing of information pursuant to this JUDGMENT
21 shall be treated as confidential and as exempt from disclosure under the relevant public records
22 laws, including Cal. Gov. Code § 7920.000 *et seq.*

23 **MONETARY PROVISIONS**

24 26. DEFENDANT shall pay the California Attorney General's Office the amount of
25 \$1,400,000.00 pursuant to Civil Code Section 1798.199.90. Payment shall be made by wire
26 transfer pursuant to instructions provided by the California Attorney General's Office in
27 accordance with the following timeline: \$700,000 to be paid to the California Attorney General
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1 no later than sixty (60) days from the EFFECTIVE DATE, and \$700,000 no later than one (1)
2 year from the EFFECTIVE DATE.

3 27. Except as otherwise expressly provided herein, each party shall bear its own
4 attorneys' fees and costs.

5 **RELEASE**

6 28. By entry of this JUDGMENT and following full payment of the amount due as set
7 forth in Paragraph 26, DEFENDANT and its past and present directors, officers, parents,
8 affiliates, employees, subsidiaries, agents, independent contractors, and successors, are released
9 and discharged from and against any and all civil claims related to DEFENDANT'S
10 COLLECTION, SALE or SHARING of CONSUMERS' PERSONAL INFORMATION that
11 were asserted, or that could have been asserted, in the Complaint under the CCPA or the UCL.

12 **ADDITIONAL GENERAL PROVISIONS**

13 29. This Court retains jurisdiction for purposes of construction, modification, and
14 enforcement of this JUDGMENT.

15 30. Nothing in this JUDGMENT shall be construed as relieving DEFENDANT of its
16 obligation to comply with all state and federal laws, regulations, or rules, or as granting
17 permission to engage in any acts or practices prohibited by such law, regulation, or rule.

18 31. DEFENDANT shall use reasonable efforts to notify its officers, directors,
19 employees, agents, and contractors responsible for carrying out and effecting the terms of this
20 JUDGMENT and the requirements therein.

21 32. Notices and reports under this JUDGMENT shall be served by email and regular
22 mail as follows:

23 To the People of the State of California:

24 Maneesh Sharma
25 California Attorney General's Office
26 455 Golden Gate Ave, Suite 11000
27 San Francisco, CA 94122
28 Email: Maneesh.Sharma@doj.ca.gov

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